



JOHNSTONE SUPPLY

Rochester: 95 Halstead Street, 14610
Toll Free: (800) 724-8806
Tel: (585) 482-8000 • Fax: (585) 482-6000
eMail: store141@johnstonesupply.com

Syracuse: 835 Canal Street, 13210
Toll Free: (877) 724-8806
Tel: (315) 479-8800 • Fax: (315) 479-8600
eMail: store269@johnstonesupply.com

Order on-line at www.JohnstoneSupply.com/141

May 9, 2018

Bob,

First, I want you to know how much I appreciate your help starting and running Johnstone Supply of Syracuse for the last 16 years. Syracuse would likely not have existed or have been as successful without you. Thank you.

As we discussed today, beginning with the first payroll that includes 5/23/18 you will be formally transitioning your role from Branch Manager to Territory Sales Manager. The position will continue to report directly to me but there will be an expectation that your actions and responsibilities parallel those of our other Territory Managers. It is also important that your efforts support the needs of our Regional Sales Manager so that he may continue to function in his role as effectively as possible.

Finally, we discussed the following wage and benefit details:

Effective with the first payroll that includes 5/23/2018 your annual compensation will be reduced to \$75,000 paid bi-weekly. This rate of compensation reflects your desire to reduce your work week to four (4) days. A commission and bonus program will be established for you once we have a proper accounting of your focus group. Health care will continue to be covered at 100%. All other benefits will continue as they are now unless there is a change to company policy or regulation or you opt for change.

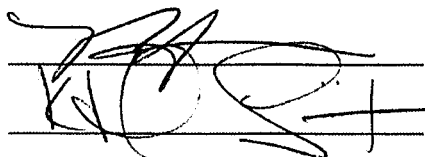
Per our conversation, you will turn in your American Express card and will receive a gas card for use with your vehicle. Auto insurance for your vehicle will continue to be provided by you.

A laptop computer has been prepared for your use and will be provided to you shortly. You will need to contact Capstone to ensure that your iPhone is capable of synchronizing email, contacts, photos, calendar appointments, and passwords with your computer. This will facilitate your sales efforts in the field.

We will review this arrangement annually or sooner if warranted by circumstance.

I look forward to working with you in your new capacity.

Comp Plan Accepted By



Date: 5/15/18

Supervisor



Date: 5/21/18

Product ▲ Knowledge ▲ Service

Subject: Re: Meeting follow-up

Date: Thursday, May 30, 2019 at 9:41:57 AM Eastern Daylight Time

From: Ken Livingston

To: Bob Spanfelner

Bob,

When we last talked you wanted to reflect on our conversation and get back to me. Have you had a chance to do that? I am interested in hearing your thoughts. We've had a decent first few months, and I want to get this matter behind us to keep the momentum going.

Thanks,
Ken

"It's our job every day to make every important aspect of the customer experience a little bit better." -Jeff Bezos

Johnstone Supply **Ken Livingston**, General Manager
JOHNSTONE SUPPLY of Central New York
Voice: 585-482-8000 | **Fax:** 315-410-5312
Email: Ken.Livingston@johnstonehvac-ny.com
Order online at: www.johnstonesupply.com/141
NYS Contract #: PC67222
Group: 39000 Industrial & Commercial Supplies & Equipment
NYS Vendor ID: 1000008135

The information in this email is confidential and may contain legally privileged information. It is intended solely for the person or entity to which it is addressed. Access to this email by anyone else is unauthorized. If you are not the intended recipient, any disclosure, copying, distribution, action taken, or action omitted to be taken in reliance on it, is prohibited and may be unlawful. If you received this email in error, please contact the sender and delete the material from any computer.

On May 16, 2019, at 1:54 PM, Ken Livingston <ken.livingston@johnstonehvac-ny.com> wrote:

Bob,

Thanks for your willingness to thrash through a knowingly difficult conversation. I hope you understand that I am trying hard to find a workable solution that balances your desire to be both productive and financially rewarded with the need to grow our Syracuse business out of the financial hole it is in. It is imperative that I find a way to better match recurring revenue streams with recurring financial reward and non-recurring opportunities, like projects, with more flexible payouts.

→ I believe you are at a point in your life where you have the opportunity to couple your skill in ferreting out profitable design-build projects with the desire for a more flexible work schedule. I'm sure you want to be available to assist your family when needed and you certainly have the financial means to do so. Rather than worry about whether you work a 3, 4, or 5 day schedule why not consider a "work as needed/desired" approach?

So long as we can come to an agreeable remuneration plan, this could be good arrangement for both of us. As we've discussed I want to free up enough capital to hire a salesman to work with

contractors/facilities/etc to grow a recurring book of business in the Syracuse metro area...no more north or south, but right here in town where we are.

Give me your thoughts and let's work out something that makes us both happy.

On a related note, I am going to look into the Medicare "Advantage" option we discussed. Rob reminded me that we've done this for Sharon. I am pretty certain that we can provide comparable coverage or better for less out of pocket expense. I'll keep you posted as I learn more about this.

Thanks again for all you have done for me and for Johnstone.

Ken

"It's our job every day to make every important aspect of the customer experience a little bit better."
-Jeff Bezos

Johnstone Supply **Ken Livingston, General Manager**
JOHNSTONE SUPPLY of Central New York

Voice: 585-482-8000 | **Fax:** 315-410-5312

Email: Ken.Livingston@johnstonehvac-ny.com

Order online at: www.johnstonesupply.com/141

NYS Contract #: PC67222

Group: 39000 Industrial & Commercial Supplies & Equipment

NYS Vendor ID: 1000008135

The information in this email is confidential and may contain legally privileged information. It is intended solely for the person or entity to which it is addressed. Access to this email by anyone else is unauthorized. If you are not the intended recipient, any disclosure, copying, distribution, action taken, or action omitted to be taken in reliance on it, is prohibited and may be unlawful. If you received this email in error, please contact the sender and delete the material from any computer.

12/01/2020

OTHER FOCUS GROUP ACCOUNTS TO REMOVE

MAPSTONE
AP PLG
ANGELO CHIODO
COONEY
HOMETOWN
CENTURY
CPP-SYRACUSE
ADAMS PLG
UPSTATE PORTFOLIO
OCM BOCES
SUNY CORTLAND
LEMOYNE COLLEGE

ACCOUNTS TO KEEP

<u>CUSTOMER</u>	<u>YTD SALES</u>	<u>YTD GP</u>	<u>OPEN ODERS</u>
JHP-PROJECTS	\$184,571.49	\$18,083.54	\$71,365.31
JHP	3,230.00	881.89	
MARTIN'S	34,877.74	10,208.64	
HILL'S	12,496.95	6,444.46	
CENTRAL WHSE	1,414.08	375.19	
AIR INNOVATIONS	13,315.51	5,351.41	
BIKOWSKY	38,296.26	7,917.75	
ALL APT.'S	38,257.13	12,061.89	
WOODCOCK CONT.	21,197.24	4,461.11	
WOODCOCK PROJECT	6,104.00	339.73	\$ 2,925.18
AIRSIDE	15,473.91	4,699.66	
SU #7845	23,854.20	7,839.38	
ITHACA CSD	7,983.46	2,408.71	
TOTALS	\$401,071.97	\$81,073.36	\$74,290.49

Johnstone Supply of GNY - Sales Manager Month-end Focus Group Sales Report										11/30/2020 6:32:04 PM	
Cust Category	Customer Name	Sales YTD	GP Dollars YTD	GP % YTD	Last Year sales (YTD)	This Year Monthly Sales	Last Year Monthly Sales	Salesman Code			
02	JHP INDUSTRIAL SPLY CO	3,230.00	881.89	27.30	7,794.00			006			
02	JHP INDUSTRIAL SPLY CO-PROJECT	184,871.49	18,083.54	9.78	85,740.45	11488.54		006			
02	MODULAR MECHANICAL SVC	601.46	260.83	43.37	2,605.70	9.14		006			
	Cust Category Totals	188,702.95	19,226.26		96,140.15	11,497.68	0.00				
0B	UNITED RADIO SERVICE	5,514.94	2,234.23	40.51	54,895.74		774.49	006			
	Cust Category Totals	5,514.94	2,234.23		54,895.74	0.00	774.49				
0H	ANGELO CHIODO HTG & AC	10,401.65	3,324.21	31.96	38,507.49	2235.13	5062.03	006			
0H	AP PLUMBING SYRACUSE	14,576.30	5,088.62	34.91	0.00	941.92		006			
0H	CENTRAL WAREHOUSE SUPPLY	1,414.08	375.19	26.53	5,289.57		228.09	006			
0H	CENTURY HTG & A/C	1,672.80	701.59	41.94	1,500.51	126.77	162.81	006			
0H	COONEY A/C & HTG	14,225.87	3,086.74	21.70	46,444.53	471.75	5423.30	006			
0H	DOUG MAPSTONE INC	40,569.05	8,086.20	19.88	40,475.12	2370.89	5540.39	006			
0H	HILL'S HEATING & A/C	12,496.95	2,507.67	20.07	6,444.46	4565.76	819.61	006			
0H	HOMETOWN HEATING AND AC	5,105.74	865.93	16.96	10,702.91	85.03	79.99	006			
0H	HSC ASSOC HTG & A/C	23,152.07	6,366.80	27.50	15,398.72		1255.94	006			
0H	MARTIN'S ELEC, HTG, PLBG	34,877.74	10,208.64	29.27	38,432.86	2081.54	3776.63	006			
	Cust Category Totals	158,492.25	40,591.59		203,196.17	12,878.79	22,348.79				
0I	AIR INNOVATIONS	13,315.31	5,351.41	40.19	22,556.75	1767.98	399.18	006			
0I	CPP - SYRACUSE INC	399.00	134.76	33.77	3,626.58		144.50	006			
	Cust Category Totals	13,714.31	5,486.17		26,183.33	1,767.98	543.68				
0P	ADAM'S PLUMBING	9,567.08	1,596.72	16.69	9,809.60		2495.59	006			
	Cust Category Totals	9,567.08	1,596.72		9,809.60	0.00	2,495.59				
0R	ABC REFRIGERATION & A/C	621.52	233.29	37.54	5,655.31		698.25	006			
0R	ACCURATE REFRIGERATION	903.66	200.54	22.19	925.77			006			
0R	KEYES	4,298.46	1,058.31	24.62	0.00			006			
	Cust Category Totals	5,823.64	1,492.14		6,581.08	0.00	698.25				

Johnstone Supply of CNY - Sales Manager Month-end Focus Group Sales Report							11/30/2020 6:32:04 PM	
Cust Category	Customer Name	Sales YTD	GP Dollars YTD	GP % YTD	Last Year sales (YTD)	This Year Monthly Sales	Last Year Monthly Sales	Salesman Code
1H	BIKOWSKY HVAC	38,296.26	7,917.75	20.67	61,656.42		11897.46	006
Cust Category Totals		38,296.26	7,917.75		61,656.42	0.00	11,897.46	
AP	BRAESIDE APTS - DHM	0.00	0.00	0.00	0.00			006
AP	EAGLES POINT APTS - DHM	1,354.91	878.30	64.82	262.22			006
AP	FAIRVIEW APTS - DHM	704.00	201.18	28.58	5,244.84	560.00		006
AP	FAIRWAYS @ TIMBERBANKS- DHM	22,845.97	6,753.65	29.56	14,308.53		1020.00	006
AP	GRANT VILLAGE APTS - DHM	684.29	188.74	27.58	0.00			006
AP	HARBORSIDE MANOR - DHM	2,304.76	838.97	36.40	1,230.01	302.00	318.00	006
AP	HERITAGE PARK APTS, LLC	5,060.74	1,203.02	23.77	13,821.30	1110.44		006
AP	SADDLE CLUB APTS - DHM	1,480.02	890.92	60.20	4,604.17	27.38	289.18	006
AP	VILLAGE GREEN APTS - DHM	3,822.44	1,107.11	28.96	0.00	1363.72		006
AP	WESTMONSTER PLACE - DHM	0.00	0.00	0.00	0.00			006
Cust Category Totals		38,257.13	12,061.89		39,471.07	3,363.54	1,627.18	
CP	UPSTATE PORTFOLIO LLC SYR	3,208.65	1,059.50	33.02	2,310.07	1823.39		006
Cust Category Totals		3,208.65	1,059.50		2,310.07	1,823.39	0.00	
HO	CROUSE HEALTH HOSP INC	0.00	0.00	0.00	72.88			006
HO	ST JOSEPH'S HOSP HEALTH	2,115.51	688.84	32.56	1,202.67			006
HO	SUNY UPSTATE MEDICAL	0.00	0.00	0.00	419.59			006
Cust Category Totals		2,115.51	688.84		1,695.14	0.00	0.00	
MH	AIRSIDE TECHNOLOGY CORP	15,473.91	4,699.66	30.37	16,620.84	1842.03	379.00	006
MH	HYDE-STONE MECH CONT INC	31.56	10.10	32.00	298.69			006
MH	TOWN MECHANICAL	0.00	0.00	0.00	38,177.14		1580.47	006
MH	WOODCOCK & ASSOC - CONST	21,197.24	4,461.11	21.05	47,027.63	1302.61	251.07	006
MH	WOODCOCK & ASSOC CONST-PROJECT	6,104.00	339.73	5.57	30,458.10			006
Cust Category Totals		42,806.71	9,510.60		132,582.40	3,144.64	2,210.54	
MU	CORTLAND CTY BLDG & GRNDS	6,227.03	1,305.82	20.97	1,359.53	867.37		006

Johnstone Supply of NY - Sales Manager Month-end Focus Group Sales Report									
1/30/2020 6:32:04 PM									
Cust Category	Customer Name	Sales YTD	GP Dollars YTD	GP % YTD	Last Year sales (YTD)	This Year Monthly Sales	Last Year Monthly Sales	Salesman Code	
Cust Category Totals		6,227.03	1,305.82		1,359.53	867.37	0.00		
SC	CHITTENANGO CSD	246.55	95.92	38.90	1,046.47			006	
SC	COLGATE UNIVERSITY	748.56	266.71	35.63	1,269.00	661.50		006	
SC	ITHACA CITY SCHOOL DIST	7,983.46	2,408.71	30.17	0.00	741.38		006	
SC	LEMOYNE COLLEGE	2,266.82	806.60	35.58	9,402.22	7.22	1408.23	006	
SC	MORRISVILLE STATE COLLEGE	0.00	0.00	0.00	0.00			006	
SC	ONONDAGA COMM COLLEGE	226.68	82.00	36.17	765.00			006	
SC	ONONDAGA-CORTLAND-MADISON BOCES	26,107.59	4,094.33	15.68	4,246.03			006	
SC	SUNY AT CORTLAND	10,868.06	3,575.86	32.90	24,480.11	102.38	1091.49	006	
SC	SYRACUSE UNIVERSITY	23,854.20	7,839.38	32.86	28,437.93	1370.28	3417.13	006	
SC	SYRACUSE UNIVERSITY	0.00	0.00	0.00	0.00			006	
Cust Category Totals		72,301.92	19,169.51		69,646.76	2,882.76	5,916.85		
Salesman Totals		585,028.38	122,341.02		705,527.46	38,226.15	48,512.83		

Subject: Re: Account Removal
Date: Thursday, February 27, 2020 at 2:54:44 PM Eastern Standard Time
From: Bob Spanfelner
To: George Shields
CC: Bob Spanfelner
Attachments: image001.jpg, image002.jpg, image003.jpg, image004.jpg

George;
One that I forgot to put on the list was
#8299 United Radio, they still have all the equipment from last year sitting in the hallway.

Bob

From: George Shields <george.shields@johnstonehvac-ny.com>
Date: Thursday, February 27, 2020 at 2:39 PM
To: Bob Spanfelner <bob.spanfelner@johnstonehvac-ny.com>
Cc: Ken Livingston <ken.livingston@johnstonehvac-ny.com>
Subject: Re: Account Removal

Bob and Ken;

I am OK with these accounts coming back to the House Accts.
We may want to discuss letting Marco work on some of these by adding them to his attrition account prospects list.
Thank you.

George Shields
Branch Manager



george.shields@johnstonehvac-ny.com
315-928-7170
johnstonesupply.com/269



ROCHESTER ▲ SYRACUSE
NYS Contract #PC67222
Group: 39000 Industrial and Commercial Supplies and Equipment
NYS Vendor ID #1000008135

The information in this email is confidential and may contain legally privileged information. It is intended solely for the person or entity to which it is addressed. Access to this email by anyone else is unauthorized. If you are not the intended recipient, any disclosure, copying, distribution, action taken, or action omitted to be taken in reliance on it, is prohibited and may be unlawful. If you received this email in error, please contact the sender and delete the material from any computer. JOHNSTONE SUPPLY

From: Bob Spanfelner <bob.spanfelner@johnstonehvac-ny.com>
Date: Thursday, February 27, 2020 at 1:40 PM
To: George Shields <george.shields@johnstonehvac-ny.com>
Cc: Bob Spanfelner <bob.spanfelner@johnstonehvac-ny.com>
Subject: Account Removal

George;

Here is my list of customers that I am proposing to remove from my focus group;

<u>ACCT #</u>	<u>NAME</u>
5929	MODULAR MECHANICAL
1125	ABC REFRIGERATION
1154	ACCURATE REFRIGERATION
12119	KEYES
8331	UPSTATE PORTFOLIO
7633	ST. JOSEPH'S HOSPITAL
2741	CROUSE HOSPITAL
7798	SUNY UPSTATE
8142	TOWN MECHANICAL
12136	HYDE STONE
2651	CORTLAND COUNTY
5993	MORRISVILLE COLLEGE
6369	ONONDAGA COMMUNITY COLLEGE
7846	SYRACUSE UNIVERSITY
2364	CHITTENAGO CENTRAL SCHOOLS
2520	COLGATE UNIVERSITY

Please review.

Bob Spanfelner
Territory Sales Manager



bob.spanfelner@johnstonehvac-ny.com
315-521-3736
johnstonesupply.com/269



ROCHESTER ▲ SYRACUSE
NYS Contract #PC67222
Group: 39000 Industrial and Commercial Supplies and Equipment
NYS Vendor ID #1000008135

The information in this email is confidential and may contain legally privileged information. It is intended solely for the person or entity to which it is addressed. Access to this email by anyone else is unauthorized. If you are not the intended recipient, any disclosure, copying, distribution, action taken, or action omitted to be taken in reliance on it, is prohibited and may be unlawful. If you received this email in error, please contact the sender and delete the material from any computer. JOHNSTONE SUPPLY